

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John deBary	Team: Team # 2	CCRB Case #: 200701090	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/19/2007 2:30 PM	Location of Incident: 1335 Flatbush Avenue	18 Mo. SOL 7/19/2008	Precinct: 70		
Date/Time CV Reported Tue, 01/23/2007 11:30 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 01/23/2007 11:30 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Megan Omalley	06355	930859	NARCBBS
2. DT3 Frank Avila	02962	918714	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Osvaldo Rosado	05288	926031	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Frank Avila	Abuse: Detective Frank Avila stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POF Megan Omalley	Abuse: Detective Megan O'Malley stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POF Megan Omalley	Abuse: Officer Megan O'Malley searched § 87(2)(b)	C . Exonerated
D . DT3 Frank Avila	Abuse: Detective Frank Avila searched § 87(2)(b)	D . Exonerated

Synopsis

On January 23, 2007, § 87(2)(b) walked into the CCRB and filed this complaint. On January 19, 2007, at approximately 2:30PM, § 87(2)(b) was walking with his friend, § 87(2)(b) when they were stopped by a white female officer and a Hispanic male officer (this investigation has determined that these officers are Officer Megan O'Malley and Detective Frank Avila of Brooklyn South Narcotics) in front of a bus stop (Allegation A and B), searched (allegation C and D) and then arrested. § 87(2)(b) admitted that the officers had recovered a small amount of marijuana from § 87(2)(b)'s hand.

§ 87(2)(g)

It is therefore recommended that allegations A through D be closed **exonerated**.

Summary of Complaint

COMPLAINANT STATEMENT

- § 87(2)(b) was interviewed at the CCRB on January 23, 2007.

On January 19, 2007, at approximately 2:30 PM, § 87(2)(b) was walking with his church friend, § 87(2)(b). He was on his way home and he had run into § 87(2)(b) as he was walking towards the bus stop. He was walking towards the B41 bus stop at Flatbush Avenue and Foster Avenue. § 87(2)(b) was on his way to work. They were walking towards Flatbush on Foster. As they crossed Flatbush, an unmarked tan SUV or small truck carrying two plainclothes detectives made a right turn onto Flatbush Avenue from Foster and stopped at the bus stop. There were no lights or sirens. A tall blonde female and a heavy Hispanic male officer exited the vehicle and approached § 87(2)(b) and § 87(2)(b). § 87(2)(b) asked what was the matter and the female officer said that they had observed § 87(2)(b) passing something to § 87(2)(b). § 87(2)(b) said that he did not pass anything to § 87(2)(b) and that § 87(2)(b) did not pass anything to him.

§ 87(2)(b) originally stated that he did not know § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) said this because he was afraid.

§ 87(2)(b) was searched by the female officer: she looked in his bag and went into his pockets from where she removed keys and a walkman. § 87(2)(b) was searched by the Hispanic officer. § 87(2)(b) stated that he told the female officer that he did not have anything on him. They were both placed in handcuffs. § 87(2)(b) stated that he found out that § 87(2)(b) was holding a small "clip" of marijuana at the time - he saw it when the male officer took it out of his hand and was not aware of it before that point. § 87(2)(b) said that a "clip" meant a small amount of marijuana. § 87(2)(b) was within three feet of § 87(2)(b) throughout the incident. They were taken away in a small unmarked van.

Results of Investigation

WITNESS LOCATION

§ 87(2)(b) provided the name and phone number of § 87(2)(b). § 87(2)(b)'s address was obtained from the arrest report. A call was made to § 87(2)(b) on January 24, 2007. The undersigned investigator introduced himself and explained why § 87(2)(b) was being contacted. § 87(2)(b) said that he would like to provide a statement but that he would need to call back to make an appointment. § 87(2)(b) was contacted via phone on January 29, 2007, once, an unidentified individual picked up and then immediately hung up; the undersigned investigator immediately called back and a message played saying that the number had been changed or disconnected with no further information. A please call letter was sent to § 87(2)(b)'s address on January 29, 2007. On February 8, 2007, the undersigned investigator called § 87(2)(b) and left a voicemail message for him. A final please call letter was sent on February 12, 2007. As of this closing report, § 87(2)(b) has not contacted the CCRB and the please call letters have not been returned.

OFFICER IDENTIFICATION

Detective Rosado was identified by the arrest report for § 87(2)(b). Officer O'Malley was identified by Detective Rosado's statement. Detective Avila was identified by Officer O'Malley's statement.

OFFICER STATEMENTS

- *Detective Rosado was interviewed at the CCRB on March 6, 2007.*

Detective Rosado stated that he had no substantive contact with § 87(2)(b) or § 87(2)(b) on January 19, 2007. He stated that he only processed the arrest paperwork and had only brief contact with the two men. He stated that Officer O'Malley radioed him to report that there were arrests of two males who were reported to have been smoking a blunt at 1335 Flatbush Avenue.

- *Officer Megan O'Malley was interviewed at the CCRB on April 20, 2007.*

On January 19, 2007, Officer O'Malley was working a 10:33AM by 7:00PM tour assigned to a SNEU chase car with Detective Avila. She was in plainclothes and was driving either a red minivan or a gray minivan.

Officer O'Malley had no memo book entries related to this incident.

On January 19, 2007, at approximately 2:30PM, Officer O'Malley was driving westbound on Foster Avenue and came to the intersection of Flatbush Avenue and Foster Avenue. Officer O'Malley and Detective Avila were in the area because they were conducting a street patrol as part of their narcotics duties. Officer O'Malley said that this area is a very busy commercial area. They were stopped at a traffic light and Officer O'Malley observed two black males, § 87(2)(b) and § 87(2)(b) walking about ten to fifteen feet in front of the car across Flatbush Avenue. One of the males was smoking a lit marijuana cigarette, he then passed the cigarette over his shoulder to the other male, who then smoked it and passed it back. Officer O'Malley knew that the men were smoking marijuana because the windows of the van she was driving were open and she could smell the smoke. She described the cigarette as being thicker than a tobacco cigarette and was dark because it was wrapped in tobacco. She said that she first observed the males smoking and then smelled the marijuana smoke.

The two men then stopped at a nearby bus stop. They waited until the males had passed to make sure that they had not noticed them. After she was sure that the men had no idea that they had just passed in front of a van of police officers, Officer O'Malley drove over to the bus stop, which was in front of 1335 Flatbush Avenue, and with their shields displayed, approached § 87(2)(b) and § 87(2)(b). They identified themselves verbally as police officers and asked the two men what they were doing and to show them their hands.

Officer O'Malley observed § 87(2)(b) rolling the cigarette up in his hand, trying to extinguish it, it was still burning but they were not smoking it. § 87(2)(b) had his hands out. § 87(2)(b) said, "Nothing, I didn't do anything." Officer O'Malley instructed § 87(2)(b) to hold out his hand and he did. Officer O'Malley saw the remnants of the cigarette in his hand so she and her partner took out their handcuffs and placed both § 87(2)(b) and § 87(2)(b) under arrest. Officer O'Malley frisked § 87(2)(b) briefly as they were being handcuffed. Detective Avila searched the males incident to the arrest and did not recover anything. They passed the two men's property to a friend who was on the scene. They then awaited a prisoner van and § 87(2)(b) and § 87(2)(b) were taken away to the 70th Precinct. Officer O'Malley stated that the males were resistant.

Officer O'Malley has been working in narcotics for about six months. She has had training and has encountered marijuana during patrol. Officer O'Malley stated that it was unusual for people to smoke marijuana in broad daylight. Officer O'Malley said that this area is known for high narcotics and high violent crime activity.

- *Detective Frank Avila was interview at the CCRB on May 17, 2007.*

On January 19, 2007 Detective Avila was working a 11:00AM by 7:00PM tour assigned to narcotics. His partner was Officer Megan O'Malley. He was in plainclothes and driving a gray minivan.

He had no relevant memo book entries but recalled the incident.

On January 19, 2007, at approximately 2:30PM, Detective Avila was driving his vehicle on Flatbush Avenue (Officer O'Malley was in the passenger's seat) and they were stopped at a red light at the corner of Flatbush Avenue and Foster Avenue. Two black males walked in front of their vehicle (they were stopped at the crosswalk and there were no cars in front of them) holding a "blunt" – a lit marijuana cigarette that is made by wrapping marijuana in a cigar leaf. Detective Avila stated that this cigarette is brown but that he could not recall the size of it. They passed the blunt back and forth between them about two times. Based on their actions (Detective Avila stated that the action of passing a lit cigarette is indicative that that cigarette contains marijuana.) and on his experience and training as police officer, Detective Avila determined that they were smoking marijuana. He could not smell the marijuana at this point.

They pulled the vehicle over (they had stopped at a bus stop in front of 1335 Flatbush Avenue), exited the vehicle, and he and Officer O'Malley identified themselves as police officers. As he approached, Detective Avila could smell the marijuana smoke. When they pulled out their shields, the male who was holding the blunt put his hand down and hid the lit blunt in his hands. Officer O'Malley asked the males where the marijuana was and the male surrendered the blunt to her. They were then placed under arrest and handcuffed. Detective Avila then searched both subjects' pockets incident to the lawful arrest and the only thing recovered was the marijuana cigarette that was in the male's hand that was handed to Officer O'Malley.

Detective Rosado, who was assigned as the arresting officer that day, then responded to the location and put the males in the prisoner van.

Detective Rosado has been working narcotics for about two years and is familiar with this kind of behavior. He stated that the vicinity is known for the sale of marijuana and crack and that this behavior is something that he experiences as part of his duty as a narcotics officers.

Detective Avila stated that the males were "very compliant." Detective Avila stated that there was no conversation about whether or not the two men knew each other or what they were doing on the street that day.

NYPD DOCUMENTS

- *Roll Call*

The January 19, 2007 roll call for the 70-1 module of Brooklyn South Narcotics confirms that Detective Avila, Detective Rosado and Officer O'Malley were working that day.

- *Command Log*

The command log indicates that § 87(2)(b) and § 87(2)(b) were brought into the 70th Precinct at 5:10PM on January 19, 2007 by Detective Rosado in as part of a large group of arrestees. There is no notable information in the entries that reflect § 87(2)(b) and § 87(2)(b)'s arrests.

- § 87(2)(a) 160.50

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

- *Holding Pen Roster*

The holding pen roster reflects the fact that § 87(2)(b) and § 87(2)(b) were brought into the holding pen at 5:15PM and were removed to Brooklyn Central Booking at 9:00PM.

OTHER DOCUMENTS

- § 87(2)(a) 160.50

[REDACTED]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

- § 87(2)(b) *s CCRB history*

This is the only complaint that contains § 87(2)(b) *s* name.

- § 87(2)(b) *s CCRB history*

§ 87(2)(g) [REDACTED]

[REDACTED]

- *Detective Avila's CCRB history*

Detective Avila has one prior substantiated CCRB allegation for failure to show search warrant. The CCRB does not have access to the NYPD's disposition or penalty.

- *Officer O'Malley's CCRB history*

Officer O'Malley has no prior substantiated CCRB allegations.

Conclusions and Recommendations

EVIDENCE ASSESSMENT

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

DETERMINATION OF FACT

§ 87(2)(g)

§ 87(2)(b) Detective Avila and Officer O'Malley's vehicle. The officers observed their behavior and based on their observations and their experience as narcotics officers, judged that the two men were smoking marijuana. They pulled the car over and approached § 87(2)(b) and § 87(2)(b) who were standing at a bus stop on Flatbush Avenue. The officers then approached the men and asked them what they were doing and to hand over the marijuana cigarette. § 87(2)(b) who was in possession of that cigarette, surrendered it. It was later vouchered as arrest evidence. Detective Avila then searched the males and recovered no further contraband. Detective Rosado then arrived in the prisoner van and § 87(2)(b) and § 87(2)(b) were taken away.

RECOMMENDED DISPOSITIONS

Allegation A – Detective Frank Avila stopped § 87(2)(b) **and** § 87(2)(b)

Allegation B – Detective Megan O'Malley stopped § 87(2)(b) **and** § 87(2)(b)

Allegation C – Officer Megan O'Malley searched § 87(2)(b)

Allegation D – Detective Frank Avila searched § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that allegations A through D be closed **exonerated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: